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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA'S OPPOSITION TO
DEFENDANT'S MOTION TO
CLASSIFY UNREDACTED
OPPOSITIONS TO EMC ORDERS
FOR THE SEPTEMBER 1, 2026
HEARING**

Case No. 251403576

Hon. Tony F. Graf, Jr.

The News Media respectfully submits this Opposition to Defendant Tyler James Robinson's Motion to Classify Unredacted Oppositions to EMC Orders for the September 1, 2026 Hearing (Motion to Classify). (Dkt. 715; *see also* Dkts. 716, 717 (Oppositions).)

Court filing are presumptively public, and both the U.S. Supreme Court and the Utah Supreme Court have recognized the public's right of access to criminal proceedings, including pretrial filings. *See* Utah Code Jud. Admin. R. 4-202.02(1), (2)(f); *Richmond Newspapers, Inc.*

v. Virginia, 448 U.S. 555 (1980) (“From this unbroken, uncontradicted history, supported by reasons as valid today as in centuries past, we are bound to conclude that a presumption of openness inheres in the very nature of a criminal trial under our system of justice. This conclusion is hardly novel....”); *State v. Archuleta*, 857 P.2d 234, 237–41 (Utah 1993) (recognizing a “presumptive right of access to documents filed in connection with a criminal preliminary hearing” that is protected by the U.S. Constitution and the Utah Constitution and that was recognized at common law).

Defendant cannot overcome the presumption favoring public access. He attempts to make secret information that is *publicly* available and that was, in fact, *created by the public*. What is public is public, and Defendant cannot change that by putting public information in a court filing. *See Craig v. Harney*, 331 U.S. 367, 374 (1947) (court cannot prohibit publication of public events). And Defendant’s alarmist predictions about the effect of this public information remaining public are unsubstantiated and improperly based on generalized concerns about public access.

For these reasons, the Court should deny the Motion to Classify.

RESPECTFULLY SUBMITTED this 27th day of August 2026.

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/s/ David C. Reymann

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